

Court No. - 39

Case :- WRIT - C No. - 6052 of 2021

Petitioner :- Jawahar Lal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bipin Kumar Tripathi, Vipin Kumar Dwivedi

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

Sri Narendra Kumar Tiwari, learned counsel for respondent no.3 prays for and is granted one week's time to complete his written instructions and place the same before this Court on the next date of hearing.

Put up on 02.03.2021 as fresh.

Order Date :- 22.2.2021

Nitin Verma

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Copy of the written instructions supplied today by the learned counsel appearing for the respondent nos. 2 & 3 is taken on record.

A perusal thereof indicates that a provisional assessment notice dated 12.09.2019 was sent through registered post. The final assessment notice was also sent on 04.11.2019 through registered post.

It appears that the petitioner had submitted his objection on 30.09.2020, much after receipt of the final assessment notice, stating that there were no dues against him. The order dated 24.02.2021 then, had been passed rejecting the representation/objection dated 30.09.2020 of the petitioner. The copy of the same is supplied to the Court on the instructions sought by us.

Learned counsel for the petitioner states that the petitioner may be provided one more opportunity to place his stand before the respondent no.3 against the final assessment order passed under Section 126 of the Act.

The petitioner has an alternative remedy of filing appeal under Section 127 of the Electricity Act, 2003 read with Clause 6.8(d) of the U.P. Electricity Supply Code, 2005.

It is, therefore, kept open for the petitioner to file an appeal.

In view of the above, the writ petition is ***disposed of***.

Order Date :- 15.3.2021

P Kesari